

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
HERIBERTO HERNANDEZ,

Plaintiff,

-against-

ABDELALIM ABDELBAKY,

Defendant,
-----X

TO THE ABOVE NAMED DEFENDANT(S):

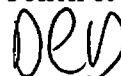
YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is plaintiff's residence.

Dated: Garden City, New York
February 8, 2023

Yours, etc.

Decolator, Cohen & DiPrisco, LLP



Attorneys for Plaintiff
1399 Franklin Avenue, Suite 300
Garden City, New York 11530
(516) 742-6575

DEFENDANT'S ADDRESS:

ABDELALIM ABDELBAKY
307 West 39th Street
New York, New York 10018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

HERIBERTO HERNANDEZ,

Index No.

Plaintiff,

- against -

**VERIFIED
COMPLAINT**

ABDELALIM ABDELBAKY,

Defendant.

-----X

Plaintiff, by his attorneys, DECOLATOR, COHEN & DIPRISCO, LLP, as and for his
Verified Complaint, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, State of New York.
2. Upon information and belief, at all times hereinafter mentioned, defendant, ABDELALIM ABDELBAKY, was and still is a resident of the County, City, and State of New York.
3. That at all times hereinafter mentioned, plaintiff was a police officer employed by the New York City Police Department.
4. Upon information and belief, that at all times hereinafter mentioned, plaintiff was an on-duty police officer and was acting within the scope of and in furtherance of his employment.
5. On or about June 12, 2022, while the Plaintiff was lawfully on or about said premises in the performance of his duties as a police officer, located at Fulton Street and Church Street, New York, New York, plaintiff was caused to sustain serious personal injuries when

defendant, ABDELALIM ABDELBAKY, failed to obey police officers and resisted plaintiff's attempt to restrain him.

6. The said injuries were caused solely and wholly by reason of the negligence and culpable conduct of the defendant, ABDELALIM ABDELBAKY, with no fault or culpable conduct on the part of the plaintiff contributing thereto.

7. As a result of the above, the plaintiff was severely injured both internally and externally; that the plaintiff became sick, sore, lame, and disabled; and have suffered great pain, shock and mental anguish, and will continue to suffer for a long time and, upon information and belief, have been permanently injured; that by reason of the foregoing, the plaintiff has been obligated to and did necessarily employ medical aid and medicines in an attempt to cure said injuries; that plaintiff was incapacitated from his employment and by reason of said disabilities, have suffered damages in an amount in excess of the maximum monetary jurisdiction of all lower Courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANT**

8. The plaintiff repeats, reiterates and realleges all of the facts set forth in the paragraphs numbered "1" through "7" inclusive, with the same force and effect as though more fully set forth herein.

9. That at the time and place afore-described, defendants, without cause, justification or provocation, with no reasonable belief as to the existence of any such cause, justification or provocation, did recklessly cause physical injury to the plaintiff.

10. That at all times hereinafter mentioned, and at the time and place afore-described, defendants, did without cause, justification or provocation, and with no reasonable belief as to

the existence of any such cause, justification or provocation, did recklessly cause physical injury to the plaintiff.

11. The aforesaid acts by defendants, caused the plaintiff to be rendered seriously injured, sick, sore and disabled, both internally and externally, and did recklessly cause the plaintiffs great physical, mental and emotional pain, trauma and distress, all of which were caused solely and wholly by reason of the conduct of the defendant, herein, with no fault or culpable conduct on the part of the plaintiff contributing thereto.

12. The damages sustained by the plaintiff thereto described were caused solely and wholly by reason of the reckless conduct of the defendants, with no fault or culpable conduct on the part of the plaintiff contributing thereto.

13. As a result of the foregoing, plaintiff was required to seek and employ hospital and medical treatment of his injuries, and were caused to be disabled from his employment and, upon information and belief, was caused to be permanently injured.

14. The injuries sustained by the plaintiff herein were sustained without any fault, want of care or culpable conduct on the part of the plaintiff herein, but solely by virtue of the neglect, omission, wilful, recklessness or culpable negligence of the defendant in failing to comply with statutes, ordinances, rules, codes, orders and/or other requirements of State, City and/or local governments then and there existent, including, but not limited to, Penal Law Section 120.00(1).

15. This action falls within one or more of the exceptions set forth in CPLR Section 1602.

16. Solely as a result of the foregoing, plaintiff has been damaged in an amount in excess of the maximum monetary jurisdiction of all lower courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANT

17. The plaintiff repeats, reiterates and realleges all of the facts set forth in the paragraphs numbered "1" through "16" inclusive, with the same force and effect as though more fully set forth herein.

18. That at the time and place afore-described, defendants, without cause, justification or provocation, with no reasonable belief as to the existence of any such cause, justification or provocation, did negligently cause physical injury to the plaintiff.

19. That at all times hereinafter mentioned, and at the time and place afore-described, defendants, did without cause, justification or provocation, and with no reasonable belief as to the existence of any such cause, justification or provocation, did negligently cause physical injury to the plaintiff.

20. The aforesaid acts by defendants, caused the plaintiff to be rendered seriously injured, sick, sore and disabled, both internally and externally, and did cause the plaintiffs great physical, mental and emotional pain, trauma and distress, all of which were caused solely and wholly by reason of the conduct of the defendant, herein, with no fault or culpable conduct on the part of the plaintiff contributing thereto.

21. The damages sustained by the plaintiff thereto described were caused solely and wholly by reason of the negligence of the defendants, with no fault or culpable conduct on the part of the plaintiff contributing thereto.

22. Upon information and belief, at all times hereinafter mentioned, said defendants, neglected, omitted and/or was willfully and/or culpably negligent in failing to comply with statutes, ordinances, codes, rules, orders and/or requirements of State, City and/or local governments of State, City and/or local governments then and there existent, including, but not limited to, Sections 120.00(1) and 120.05(1) of the Penal Law.

23. As a result of the foregoing, plaintiff was required to seek and employ hospital and medical treatment of his injuries, and were caused to be disabled from his employment and, upon information and belief, was caused to be permanently injured.

24. This action falls within one or more of the exceptions set forth in CPLR Section 1602.

25. Solely as a result of the foregoing, plaintiff has been damaged in an amount in excess of the maximum monetary jurisdiction of all lower courts of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANT**

26. The plaintiff repeats, reiterates and realleges all of the facts set forth in the paragraphs numbered "1" through "25" inclusive, with the same force and effect as though more fully set forth herein.

27. Defendant intentionally failed to cooperate with the plaintiff in refusing to obey lawful orders to produce valid identification.

28. Upon information and belief, at all times hereinafter mentioned, said defendants, neglected, omitted and/or was willfully and/or culpably negligent in failing to comply with statutes, ordinances, codes, rules, orders and/or requirements of State, City and/or local

governments of State, City and/or local governments then and there existent, including, but not limited to, Sections 120.05(3), 195.05, 240.20, 205.30, and 120.00(2) of the Penal Law.

29. Defendant intentionally resisted arrest.

30. Defendant intentionally interfered with governmental administration.

31. Defendant intentionally caused an injury to the plaintiff.

32. The injuries sustained by the plaintiff herein were sustained without any fault, want of care or culpable conduct on the part of the plaintiff herein, but solely by virtue of the neglect, omission, willful or culpable negligence of the said defendants, in failing to comply with statutes, ordinances, rules, codes, orders and/or other requirements of State, City and/or local governments then and there existent, including, but not limited to, Section 120.05(3), 195.05, 240.20, 205.30 and 120.00(2) of the Penal Law.

33. The said defendants violated the above-cited provisions in that the defendants, inter alia, intentionally prevented or attempted to prevent a police officer from restraining him and failed to obey the lawful orders of a police officer; recklessly caused physical injury to the plaintiff; caused a dangerous, disorderly and unruly situation to exist and remain; did without cause, justification or provocation cause physical injury to the plaintiff.

34. As a result of the defendant's conduct, plaintiff was seriously injured.

35. Solely by reason of the foregoing, plaintiff assert a cause of action against the defendants under Section 205-e of the General Municipal Law of the State of New York and a General Obligations Law Section 11-106 claim.

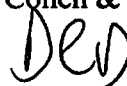
36. Solely by reason of the foregoing, the plaintiff has sustained damages in an amount in excess of the maximum monetary jurisdiction of all lower Courts of the State of New York.

WHEREFORE, plaintiff demands judgment against the defendant in the First, Second, Third and Fourth Causes of Action in an amount in excess of the maximum monetary jurisdiction of all lower Courts, together with the interest, costs and disbursements of this action

Dated: Garden City, New York
February 8, 2023

Yours, etc.

Decolator, Cohen & DiPrisco, LLP



Attorneys for Plaintiff
1399 Franklin Avenue, Suite 300
Garden City, New York 11530
(516) 742-6575

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STATE OF NEW YORK, COUNTY OF **NASSAU** ss.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ Certification By Attorney certify that the within has been compared by me with the original and found to be a true and complete copy.

☒ Attorney's Affirmation state that I am the attorney(s) of record for **Plaintiff** in the within action; I have read the foregoing **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by **plaintiff is because the plaintiff resides**

in a county other than the one in which your deponent maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: **conversations with plaintiff and office records.**

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: **Garden City, New York; February 8, 2023** ss.: **Decolator, Cohen & DiPrisco, LLP**
The name signed must be printed beneath

I, the undersigned, being duly sworn, depose and say: I am

☐ Individual Verification in the action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

☐ Corporate Verification the of corporation and a party in the within action; I have read the foregoing and know the contents thereof; and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF ss.: (If more than one box is check—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within
☐ Service By Mail by mailing a copy to each of the following persons at the last known address set forth after each name below.
☐ Personal Service on Individual by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:
☐ Service by Electronic Means by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.
☐ Overnight Delivery Service by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Sworn to before me on The name signed must be printed beneath

Index No. Year RJI No. Hon.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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-against-

ABDELALIM ABDELBAKY,

Defendant.

SUMMONS AND COMPLAINT

DECOLATOR, COHEN, & DIPRISCO, LLP
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Attorneys for Plaintiff
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1399 Franklin Avenue • Suite 300
GARDEN CITY, NEW YORK 11530
TEL: (516) 742-6575
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To

Signature (Rule 130-1.1-a)

Attorney(s) for

Print name beneath
Decolator, Cohen & DiPrisco, LLP

Service of a copy of the within is hereby admitted.

Dated,

Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
settlement to the HON.
of the within named court, at
on

of which the within is a true copy will be presented for
one of the judges

at M

Dated,

Yours, etc.

DECOLATOR, COHEN, & DIPRISCO, LLP
ATTORNEYS AT LAW

To

Attorneys for

Attorney(s) for

Office and Post Office Address
1399 Franklin Avenue • Suite 300
GARDEN CITY, NEW YORK 11530